

ISLAMIC STUDIES

ASSIGNMENT

Topic: Basic Sources of Sharī‘ah

Al-Qur’ān • Al-Sunnah • Ijmā‘ • Qiyās

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Basic Sources of Sharī‘ah

Introduction

Islam is a complete way of life that provides guidance for human beings in every aspect of life. It teaches Muslims how to worship Allah, behave with others, conduct business, establish families, and maintain justice and morality in society.

The Islamic system of divine guidance and law is known as **Sharī‘ah**. The word Sharī‘ah literally refers to a clear path or way. In Islamic terminology, it means the divine guidance and principles that regulate the religious, moral, social and legal life of Muslims.

The study of Islamic law and its principles is known as **Uṣūl al-Fiqh**. The four commonly discussed sources of Islamic jurisprudence are:

1. **Al-Qur’ān** – the primary source of Islamic guidance.
2. **Al-Sunnah / Hadith** – the teachings and practical example of Prophet Muhammad ﷺ.
3. **Ijmā‘** – the consensus of qualified Islamic jurists.
4. **Qiyās** – reasoning by analogy based on an established Islamic ruling.

The Qur’ān and Sunnah provide the fundamental revealed guidance, while Ijmā‘ and Qiyās are important juristic methods used to deal with legal questions and new situations.

1. Al-Qur'ān: Revelation and Compilation

The **Holy Qur'ān** is the revealed Word of Allah and the primary source of Islamic law and guidance. It was revealed to Prophet Muhammad ﷺ through Angel Jibrīl (عليه السلام).

The Qur'ān contains guidance concerning faith, worship, morality, family life, social responsibilities, justice and many other aspects of human life. It is also the greatest miracle given to Prophet Muhammad ﷺ.

Allah says:

إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ

“Indeed, We have sent down the Reminder, and indeed, We will guard it.”
(Al-Hijr 15:9)

Revelation of the Qur'ān

The Qur'ān was revealed gradually over approximately **23 years**, beginning in Makkah and continuing in Madīnah until shortly before the death of Prophet Muhammad ﷺ.

The gradual revelation helped the Companions understand and practice Islamic teachings step by step. It also provided guidance concerning particular situations and questions faced by the early Muslim community.

The Qur'ān was preserved through two important methods:

- **Memorization:** Many Companions memorized the revealed verses.
- **Writing:** The verses were written by the scribes of revelation on materials available at that time, such as leather, palm leaves and other writing materials.

Thus, preservation began during the lifetime of the Prophet ﷺ itself.

Compilation During the Lifetime of Prophet Muhammad ﷺ

Whenever revelation came, Prophet Muhammad ﷺ instructed his Companions regarding its recording and placement. Several Companions served as **scribes of revelation**, including Zayd ibn Thābit (رضي الله عنه).

The verses were written down while many Companions simultaneously memorized them. The arrangement of verses within the sūrahs was established under the guidance of the Prophet ﷺ.

Therefore, the Qur'ān was preserved both **in written form and through memorization**.

Compilation During the Caliphate of Abū Bakr (رضي الله عنه)

After the death of Prophet Muhammad ﷺ, many Companions who had memorized the Qur'ān were martyred during the **Battle of Yamāmah**.

‘Umar ibn al-Khaṭṭāb (رضي الله عنه) became concerned about the preservation of the Qur'ān and suggested to Caliph Abū Bakr al-Ṣiddīq (رضي الله عنه) that the Qur'ān should be collected into one manuscript.

Abū Bakr (رضي الله عنه) accepted this important responsibility and appointed **Zayd ibn Thābit** (رضي الله عنه) to lead the compilation.

The verses were collected and carefully verified using written records and the memorization of the Companions. The completed manuscript was kept first with Abū Bakr (رضي الله عنه), then with ‘Umar (رضي الله عنه), and later with Ḥaḥṣah (رضي الله عنها).

Standardization During the Caliphate of ‘Uthmān (رضي الله عنه)

As Islam spread to different regions, differences in dialect and recitation began to create disagreements among Muslims.

Caliph ‘Uthmān ibn ‘Affān (رضي الله عنه) therefore arranged for standardized copies of the Qur'ān to be prepared using the manuscript preserved with Ḥaḥṣah (رضي الله عنها).

A committee led by Zayd ibn Thābit (رضي الله عنه) prepared copies, which were then sent to important centers of the Muslim world.

This standardization helped preserve the unity of the Muslim community and ensured that Muslims followed a common written text.

Preservation of the Qur'ān

The Qur'ān has been preserved through both **oral and written transmission**. Muslims throughout history have memorized the entire Qur'ān, and this tradition continues today.

The concept of **Tawātur**, meaning mass transmission through numerous transmitters in successive generations, is also important in Islamic scholarship concerning the Qur'ān.

The preservation of the Qur'ān demonstrates the importance Muslims have always placed on maintaining the revealed text accurately.

2. Al-Hadith and the Importance of Sunnah

After the Qur'ān, the **Sunnah of Prophet Muhammad ﷺ**, preserved and transmitted through Hadith, is a fundamental source of Islamic guidance and law.

The word **Hadith** means a report, narration or statement. In Islamic terminology, Hadith refers to reports concerning the Prophet's ﷺ:

- sayings (**Qawl**),
- actions (**Fi'l**),
- approvals (**Taqrīr**), and
- characteristics (**Ṣifah**).

The **Sunnah** refers to the normative way and example of Prophet Muhammad ﷺ. It shows Muslims how the teachings of the Qur'ān are put into practice.

Need and Importance of Hadith

The Qur'ān contains many general commands, while the Sunnah provides important practical details.

For example, the Qur'ān commands Muslims to **establish prayer**, but the Sunnah explains the practical method of prayer, including its actions and other details.

Similarly:

- The Qur'ān commands Muslims to pay **Zakāh**, while the Sunnah explains many practical details concerning it.
- The Qur'ān commands Muslims to perform **Hajj**, while the Sunnah demonstrates its practical rituals.
- The Sunnah explains and clarifies many general Qur'ānic commands.

Allah says:

وَأَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ

“Obey Allah and obey the Messenger.”
(Al-Mā'idah 5:92)

The Qur'ān also says:

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ

“Whatever the Messenger gives you, take it.”
(Al-Hashr 59:7)

These verses demonstrate the importance of following the guidance of Prophet Muhammad ﷺ.

Relationship Between the Qur'ān and Hadith

The Qur'ān and Sunnah work together in Islamic jurisprudence. The Sunnah performs several important functions.

1. Explanation

The Sunnah explains general Qur'ānic commands and shows how they should be practiced.

2. Specification

The Sunnah can provide details concerning general rulings and explain their proper application.

3. Clarification

The Sunnah clarifies matters that may not be fully understood from the Qur'ānic text alone.

4. Practical Example

Prophet Muhammad ﷺ demonstrated Islamic teachings through his own actions and conduct. His life therefore provides Muslims with a practical model of Islamic guidance.

Preservation and Authenticity of Hadith

Muslim scholars developed detailed methods for examining Hadith. Two important parts of a Hadith are:

Isnād: The chain of narrators through whom the report was transmitted.

Matn: The actual text or content of the Hadith.

Scholars examined the reliability, character and memory of narrators and also studied whether the chain was connected and whether the report contained defects or contradictions.

Hadith are commonly classified into categories such as:

- **Ṣaḥīḥ** – authentic
- **Ḥasan** – good
- **Ḍa'īf** – weak
- **Mawḍū'** – fabricated

Important Hadith collections include **Ṣaḥīḥ al-Bukhārī** and **Ṣaḥīḥ Muslim**.

Thus, Hadith is essential for understanding the practical application of the Qur'ān and the life of Prophet Muhammad ﷺ.

3. Ijmā' : Consensus of Scholars

The third source of Islamic jurisprudence is **Ijmā'** (الإجماع).

Literally, Ijmā' means **agreement or consensus**. In Islamic jurisprudence, it generally refers to the unanimous agreement of qualified Muslim jurists on a particular legal ruling after the death of Prophet Muhammad ﷺ.

Ijmā' is important because new legal questions may arise that are not directly addressed in a specific text. Qualified scholars can study the Qur'ān, Sunnah and established principles of Islamic law and reach a common conclusion.

Allah says:

وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ

“And follows other than the way of the believers...”
(Al-Nisā' 4:115)

A commonly cited Hadith also states:

“My community shall never agree upon an error.”

This narration is used by scholars in discussions concerning the authority of genuine Ijmā'.

Types of Ijmā'

1. Ijmā' Ṣarīḥ

This is **explicit consensus**, where qualified scholars clearly express their agreement concerning a particular ruling.

2. Ijmā' Sukūṭī

This refers to a situation in which some qualified scholars express a ruling and other scholars become aware of it but do not openly object. Jurists differ concerning the legal strength and status of this form.

Conditions of Ijmā'

Important conditions discussed by jurists include:

- The agreement should involve qualified jurists.
- It must occur after the death of Prophet Muhammad ﷺ.
- There should be genuine agreement concerning the particular legal issue.
- The ruling must be consistent with the principles of the Qur'ān and Sunnah.

Ijmā' therefore represents the collective scholarly effort of the Muslim community and contributes to unity and stability in Islamic legal thought.

4. Qiyās: Analogical Reasoning

The fourth major source of Islamic jurisprudence is **Qiyās** (القياس).

The word Qiyās means **measuring, comparing or analogy**. In Islamic jurisprudence, it refers to extending an established ruling to a new case because both cases share the same effective cause, known as the **'Illah**.

Qiyās is particularly useful when a new issue does not have a direct ruling in the Qur'ān or Sunnah.

Four Elements of Qiyās

1. Aṣl (Original Case)

The original case for which a ruling already exists in the Qur'ān or Sunnah.

2. Far' (New Case)

The new matter for which a legal ruling is required.

3. Ḥukm (Original Ruling)

The legal ruling that applies to the original case.

4. 'Illah (Effective Cause)

The common reason or characteristic that connects the original case with the new case.

Example of Qiyās: Intoxicants

The Qur’ān prohibits **Khamr** and intoxicating substances. One important reason associated with the prohibition is their intoxicating effect and harm to the intellect.

If a new substance appears that causes the same type of intoxication, jurists can examine whether the same effective cause exists. If the required conditions for Qiyās are fulfilled, the ruling can be extended to the new substance by analogy.

For example:

Aṣl: Khamr or an intoxicating substance

Ḥukm: Prohibited

‘Illah: Intoxication

Far’: A new intoxicating drug

Derived ruling: Prohibited through valid Qiyās

This example shows how Qiyās enables Islamic jurisprudence to address new circumstances while remaining connected to established principles.

Importance of Qiyās

Human society continues to develop, and new questions arise in areas such as business, technology, medicine and social life. Qiyās provides qualified jurists with a method of applying established principles to such new situations.

However, Qiyās cannot be used to contradict a clear and established ruling of the Qur’ān or authentic Sunnah. It requires proper knowledge of Islamic sources and competent juristic reasoning.

Comparative Overview of the Four Sources

Source	Meaning	Main Role
Qur’ān	Divine revelation	Primary foundation of Islamic guidance and law
Sunnah / Hadith	Prophet's ﷺ teachings and example	Explains and demonstrates the Qur’ān
Ijmā’	Scholarly consensus	Provides a collective juristic position
Qiyās	Legal analogy	Applies established principles to new cases

The four sources are interconnected. The Qur’ān provides the foundation, the Sunnah explains and demonstrates its teachings, Ijmā’ represents qualified scholarly agreement, and Qiyās provides a method for addressing new legal questions.

Conclusion

The **Qur'ān, Sunnah, Ijmā' and Qiyās** are fundamental concepts in the study of Islamic jurisprudence. Each has a distinct role in the understanding and application of Sharī'ah.

The **Qur'ān** is the primary revealed source and provides the fundamental principles of Islamic guidance. The **Sunnah** preserves the teachings and practical example of Prophet Muhammad ﷺ and explains how many Qur'ānic commands should be implemented.

Ijmā' represents the agreement of qualified scholars on legal matters, while **Qiyās** enables qualified jurists to extend established rulings to new situations when the necessary conditions are fulfilled.

Together, these sources demonstrate the structured nature of Islamic jurisprudence. They provide Muslims with a framework that remains firmly connected to revelation while allowing qualified scholars to deal with new circumstances through established principles.

Understanding these four sources is therefore essential for understanding **Sharī'ah and Uṣūl al-Fiqh**.

والله أعلم

And Allah knows best.

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